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| CASE #      | CASE NAME    | HEARING NAME                                                                                                     |
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| CVRI2501503 | LEE VS URBAN | MOTION TO COMPEL CROSS-COMPLAINANT JIM URBAN'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS (SET ONE) |

| CASE #      | CASE NAME    | HEARING NAME                                                                                       |
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| CVRI2501503 | LEE VS URBAN | MOTION TO COMPEL CROSS-COMPLAINT JIM URBAN'S FURTHER RESPONSE TO SPECIAL INTERROGATORIES (SET ONE) |

| CASE #      | CASE NAME    | HEARING NAME                                                                                      |
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| CVRI2501503 | LEE VS URBAN | MOTION TO COMPEL CROSS-COMPLAINT JIM URBAN'S FURTHER RESPONSE TO REQUEST FOR ADMISSIONS (SET ONE) |

| CASE #      | CASE NAME    | HEARING NAME                                                                                      |
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| CVRI2501503 | LEE VS URBAN | MOTION TO COMPEL CROSS-COMPLAINANT JIM URBAN'S FURTHER RESPONSE TO FORM INTERROGATORIES (SET ONE) |

**Tentative Ruling:** Cross-Defendant General Motors, LLC's Motions to Compel are granted.

Requests for sanctions is denied.

A party may file a motion compelling further answers to interrogatories, requests for production, and requests for admissions if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.)

The issue presented is the timeliness of the motions. Unless *notice of the motion is given within 45 days of the service of the verified response, or any supplemental verified response*, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c), 2033.290(c).) Failure to comply with the discovery deadline “is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Verifications by a party are not required for objection only responses; an attorney's signature is sufficient. (See Code Civ. Proc., §§ 2030.250, 2031.250, 2033.240.) The statutes do not reference the situation where a responding party serves objection only responses. In *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 136, the court noted the issue but declined to address it. One treatise notes that to be safe, a moving party should serve the motion within 45 days of service of unverified objections to be safe. (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* § 8:1150.8 (Rutter Group 2026).)

Statutory interpretation requires a three-step analysis. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 825-826.) First, the court examines the actual language of the statute and gives the words their ordinary meaning; if the language is unambiguous, the language controls. (*Ibid.*) Second, if the meaning of the words is not clear, the courts must look to the legislative history. (*Ibid.*) Third, if the clear meaning is still not revealed, the court is to apply reason, practicality and common sense to interpret the words to make them workable and reasonable. (*Ibid.*) Based on the statutes, a plain reading requires verified responses to commence the 45 day time period. Accordingly, the motions are timely.

### *Interrogatories*

Upon a timely motion to compel further, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (See *Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits." (Code Civ. Proc., § 2030.220(a).) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (*Id.* at § 2030.220(b).) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information...." (*Id.* at § 2030.220(c).)

For the form interrogatories, at issue are the basic information about Urban (series 1.0 and 2.0), insurance (series 4.0), injuries (series 6.0), property damage (series 7.0), earning capacity (series 8.0), other damages (series 9.0), prior injuries (series 10.0), and claims for injuries (series 11.0) to which Urban objected on the right of privacy. As to witnesses (series 12.0), surveillance (series 13.0), negligence per se (series 14.0), affirmative defenses (series 15.0), contributory negligence (series 16.0), requests for admissions (series 17.0), and the incident (series 20.0), to which Urban provided boilerplate objections, and asserted attorney-client privilege, attorney work product, expert disclosure and premature. Urban failed to justify his objections in opposition. The motion IS granted.

For the special interrogatories, nos. 1-15, 35, 43-49 ask for background information of the vehicle. Nos. 16-19, 32-34 deal with the incident. Nos. 20-31 are contention interrogatories. Nos. 36-42 ask for defects regarding the vehicle. Nos. 50-52 deal with damages. Again, Urban raised boilerplate objections and attorney-client privilege/work product, but failed to justify his responses. The motion is granted.

### *Requests for Admissions*

A response must either include an admission, denial, lack of knowledge or objection. (Code Civ. Proc., §§ 2033.220 and 2033.230.) If a party is unable to admit or deny, it shall state that a reasonable inquiry has been made. (*Id.* at § 2033.220(c).) For the latter, a “party has a duty to make a reasonable investigation of the facts before answering items which do not fall within his personal knowledge.” (*Bloxham v. Saldinger* (2014) 228 Cal.App.4th 729, 751-752.) The reason is that “requests for admissions are more closely akin to summary adjudication procedures than to orthodox discovery, being designed not so much to ‘discover’ the facts and to expedite trial preparation as to render it unnecessary to try an otherwise triable issue of fact or law.” (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762.) The same rules applying to motions to compel further responses regarding interrogatories applies to requests for admissions. (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* §8:1382 (Rutter Group 2026).)

As with the interrogatories, Urban provided boilerplate objections and asserted attorney-client privilege, work product doctrine and expert opinion. Urban failed to justify his responses.

### SANCTIONS

Sanctions are recoverable against a party who unsuccessfully opposes a motion, unless that party acted with substantial justification or sanctions are unjust. (Code Civ. Proc., §§ 2030.300, 2031.310, 2033.290.) Here, sanctions are not appropriate. As to his counsel, as it appears counsel lost touch with Urban. As to Urban, it appears he was/is in jail.